

Court No. - 37

Case :- WRIT - C No. - 2163 of 2014

Petitioner :- M/S R.D. Papers Ltd. And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Baleshwar Chaturvedi

Hon'ble Vineet Saran, J.

Hon'ble Suneet Kumar, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Sri Baleshwar Chaturvedi, learned counsel for the respondents no. 1 and 2 and Sri A.N. Singh for the respondent no. 3.

By means of this writ petition, the petitioners have prayed for quashing the demand notice dated 21.12.2013 passed by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submit that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners.

Order Date :- 15.1.2014

dps

(Suneet Kumar, J.) (Vineet Saran, J.)

Court No. - 21

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Baleshwar Chaturvedi, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed, list in the month of July, 2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.5.2023

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Court No. - 3

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Petitioner :- M/S R.D. Papers Ltd. And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi,S.C.

Hon'ble Shekhar B. Saraf,J.

Hon'ble Praveen Kumar Giri,J.

This petition has been filed for quashing the demand notice requiring the petitioner to pay additional security.

It is pointed out by learned counsel for the parties that the issues raised in this petition have been decided against the petitioner in **Writ-C No.30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & Ors.)** by judgment and order dated 21 March, 2017 whereby this Court has dismissed the writ petition after coming to the conclusion that the demand of additional security by the distribution licensee is not bad.

For all the reasons stated in the aforesaid judgment, this petition stands dismissed.

Order Date :- 1.8.2025

K.K. Maurya

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)